BLACK PEN Answer all questions first. **GREEN PEN** Then: tick and rewrite mistakes.

LESSON 157 · Lesson 157 · Data Protection: OCR's 1998 Act and Today's UK Law

Name: _____ Class: _____ Date: _____

Work through the pages in order. Answer in BLACK PEN first. Check in GREEN PEN only after the Exit Ticket.

Do Now · Recall previous learning

Q1. Why must a server validate data sent by a browser?

Q2. What is the purpose of an operating system's memory management?

Q3. What is the worst-case order of binary search?

Q4. Why does the TLS padlock not guarantee a site is honest?

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I Do · Read new knowledge

Key vocabulary

personal data — Information relating to an identified or identifiable living person.

data minimisation — Collect only data necessary for a specified purpose.

controller — Organisation deciding purposes and means of processing.

UK GDPR — Current UK data protection regulatory framework alongside DPA 2018.

New learning

OCR historic focus — DPA 1998 protected living people's personal data; OCR names this Act in 1.5.1.

Current framework — DPA 2018 and UK GDPR now form the core UK regime; later legislation amends it.

Apply principles — Purpose, minimisation, accuracy, security and lawful handling matter in a school. OCR 1.5.2 also asks for ethical judgement : monitoring and analysing personal data may be permitted in particular circumstances yet still introduce bias, unjustified intrusion or harmful automated decisions.

Worked example

A school stores student medical notes alongside general attendance records and permits every staff member to open them. Identify data-protection issues.

1. Identify sensitive data — Identify the relevant facts, purpose and authority.

2. Restrict justified access — Discuss which law or safeguard fits the situation.

3. Secure, minimise and review — Medical information is sensitive personal data with stronger protections. Restrict access by legitimate role, use a proper lawful basis and relevant special-category condition, minimise collected fields, keep information accurate and protect access. DPA 1998 is named historically by OCR but current UK law is DPA 2018/UK GDPR.

4. Inspect before predicting — Missing registration entries are not necessarily absences. An automated score based on incomplete records can be inaccurate. Analyse how data were collected, not only the calculated result.

5. Bias, monitoring and transparency — Continuous pupil monitoring may be intrusive and disadvantage some groups if context is ignored. A system must have a proportionate purpose, access safeguards and a meaningful way to question errors.

6. Human review before action — No automatic sanction. Check original entries, pupil circumstances and the model’s limitations; use verified information for supportive

intervention. Compliance with data protection law alone does not guarantee an ethically fair decision.

We Do · Practise with guidance

An online revision form collects names, birthdays, home addresses and marks even though only anonymous quiz feedback is needed. What should change?

Quiz purpose identified

Identify the relevant facts, purpose and authority.

Remove excess personal fields

Discuss which law or safeguard fits the situation.

Give clear privacy notice

Under data minimisation, only collect what is needed for the stated function; avoid unnecessary personal identifiers, explain the purpose, set retention and secure any necessary records. A school also considers transparency and the rights of data subjects.

A revision app monitors time spent answering questions and automatically labels slow responders as low ability. Evaluate the decision.

Consider: accuracy of inference, purpose and consent/lawful basis as applicable, fairness, pupil impact and human review.

Challenge the assumption

Does response time reliably measure ability? What alternative explanations might exist?

Identify two harms

Slow answers may reflect careful thinking, assistive technology, interrupted access or additional processing time. Automatic labels can be misleading and discourage pupils. Persistent monitoring also raises privacy concerns.

Recommend a proportionate alternative

Use time only as limited contextual evidence, check other learning information, minimise unnecessary personal tracking and allow teacher/pupil challenge. Avoid inferring ability from timing alone.

BLACK PEN Answer all questions first. **GREEN PEN** Then: tick and rewrite mistakes.

You Do · Work independently

BLACK PEN: Write your own answers. Do not look at the Review & Improve pages yet.

Question 1

State three obligations or principles associated with protecting personal data, applied to a school. [6]

Question 2

Explain the distinction between OCR naming the Data Protection Act 1998 and the modern UK data-protection framework. [6]

Question 3

A school proposes publicly sharing a named student progress spreadsheet and automatically sanctioning pupils flagged by an AI model trained on incomplete attendance records. Evaluate legal and ethical risks. [8]

Exit Ticket · Answer before checking

The Data Protection Act 1998 remains the UK's principal current data protection law.

BLACK PEN Answer all questions first. **GREEN PEN** Then: tick and rewrite mistakes.

Review & Improve · GREEN PEN

Now change to GREEN PEN. Find each original question. Tick correct answers; read the model and rewrite mistakes.

Page 1 onwards · Do Now

Q1. Client-side checks can be bypassed, so authoritative checks belong on the server.

Q2. Allocating and protecting memory for running programs.

Q3. O(log n) on sorted random-access data.

Q4. Encryption in transit does not establish trustworthiness of operator.

You Do pages · Independent questions

Q1. Lawful/fair handling [2], accuracy [2], purpose/adequacy/security/retention with relevant examples [2].

Q2. 1998 named as historical spec reference [2], replaced by DPA 2018 [2], UK GDPR and later amendments also relevant [2].

Q3. Lawful/transparent purpose and no unjustified publication [2]; minimise data and restrict access [2]; unreliable/possibly biased automated flag from incomplete data [2]; verify source records and enable human review, explanation and proportionate supportive action [2].

Exit Ticket · Model answer

False. The 1998 Act was replaced by the DPA 2018; UK GDPR also applies.

Try the question again

Choose one question you got wrong. All correct? Choose the hardest.

1. Copy the whole original question:

2. Write a complete new answer in GREEN PEN. Show working if needed:

BLACK PEN Answer all questions first. **GREEN PEN** Then: tick and rewrite mistakes.

Do Now Recall previous learning | **I Do** Read new knowledge | **We Do** Practise with guidance | **You Do** Work independently | **Review & Improve** Check understanding